

25STCV18826 25STCV18826

County: los-angeles

Division: Civil Law and Motion

Department: 415

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Case Number: 25STCV18826 Hearing Date: August 24, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 24, 2026

CASE NUMBER

25STCV18826

MOTION

Motion for Protective Order

MOVING PARTY

Defendant Ford Motor Company

OPPOSING PARTY

None

MOTION

Plaintiff Guadalupe

Villalobos ("Plaintiff") brought the instant action against Defendant Ford Motor Company ("Defendant"), alleging Plaintiff's vehicle, which Defendant manufactured, is defective. Defendant now moves for a protective order. Plaintiff has not opposed the motion.

Defendant cites no

authority in its notice of motion which could support the relief Defendant seeks. As such, the Court cannot grant Defendant's motion. (See Code Civ. Proc., § 1010 ["Notices must be in writing, and the notice of a motion, other than for a new trial, must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based"]; Cal. Rules of Court, rule 3.1110(a) ["A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order"]; *People v. American Surety Insurance Co.* (1999) 75 Cal.App.4th 719, 726 [court concluded notice of motion made no reference to the fact of what the movant sought or the grounds for such relief, as required by rule 311(a) of the California Rules of Court, the predecessor to Rules of Court, rule 3.1110(a)].)

Therefore, the

motion is denied for lack of applicable authority.

Furthermore,

Defendant seeks a protective order regarding discovery Plaintiff has not yet propounded. No authority permits Defendant to obtain a protective order regarding hypothetical future discovery. In any event, parties to litigation routinely stipulate to such a protective order, which the Court may then enter. However, in this case, the parties have not so stipulated.

This ruling is

without prejudice to Defendant's ability to move to seek protective orders with respect to more particularized discovery matters.

Defendant is to

give notice of the Court's ruling and to file proof of service of same.